

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No. _____

-----X
NYGEL JOSEPH,

Plaintiff,

-against-

THE CITY OF NEW YORK, BRENDON GRACE, and
JOHN DOES #1-2, being the fictitious names of New York
City Police Department officers whose names are unknown
to Plaintiff,

Defendants.
-----X

SUMMONS

Pursuant to CPLR 504(3),
Plaintiff designates Bronx
County as venue based upon
where the cause of action
arose.

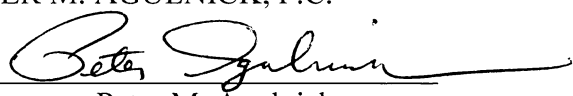
TO THE ABOVE-NAMED DEFENDANTS:

You are hereby summoned and required to serve upon Plaintiff's attorney an answer to the complaint in this action within twenty days after the service of this summons, exclusive of the day of service, or within thirty days after service is complete if this summons is not personally delivered to you within the State of New York. In case of your failure to answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Great Neck, New York
June 1, 2017

Yours, etc.,

PETER M. AGULNICK, P.C.

By: 

Peter M. Agulnick

Attorneys for Plaintiff

NYGEL JOSEPH

8 Bond Street, Suite 303

Great Neck, New York 11021-2426

(212) 571-2266

(File # 425-001)

DEFENDANTS' ADDRESSES:

THE CITY OF NEW YORK

C/O Zachary W. Carter, Esq.

New York City Law Department

100 Church Street

New York, New York 10007

BRENDON GRACE

1 Police Plaza

New York, New York 10007

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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NYGEL JOSEPH,

Plaintiff,

COMPLAINT

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Plaintiff NYGEL JOSEPH, through his counsel, for his complaint, states the
following upon information and belief:

PARTIES

1. Plaintiff NYGEL JOSEPH is an individual who resides in the State of
New York.

2. Defendant THE CITY OF NEW YORK (hereinafter "CITY") is a
municipal corporation organized under the laws of the State of New York, in and as the
City of New York.

3. Defendant BRENDON GRACE is an individual whose residence is
unknown to Plaintiff, and who is a New York City Police Department officer.

4. Defendant JOHN DOES # 1 - 2 are New York City Police Department
officers whose names and addresses are presently unknown to Plaintiff.

5. The individual Defendants (that is, the individual police officers) are being
sued both in their individual capacity and in their official capacity as police officers

employed by Defendant THE CITY OF NEW YORK.

**PREREQUISITES TO SUIT AGAINST THE CITY OF NEW YORK FOR
STATE-LAW CAUSES OF ACTION**

6. Plaintiff has served timely notice of claims upon Defendant CITY within 90 days after Plaintiff was falsely arrested and detained, as described in this complaint.

7. At least 30 days have elapsed since the service of such notice of claims and that adjustment or payment has been neglected or refused.

FACTS

8. On June 4, 2016 at about 1:45 A.M., Plaintiff was lawfully in a car at about the location of the Northeast corner of Viele Avenue and Tiffany Street in Bronx, NY.

9. On June 4, 2017, Defendant BRENDON GRACE (Shield # 31003) and JOHN DOES # 1 - 2 were New York City Police Department officers (all collectively will be hereinafter referred to as “Defendant Police Officers.”)

10. On June 4, 2017, while Plaintiff, who is black, was stopped in his car for no reason by Defendant Police Officers.

11. A reasonable person or police officer should have known that Plaintiff had committed no crime.

12. Defendant Police Officers had no warrant arrest Plaintiff.

13. Defendant Police Officers otherwise had not other lawful reasons to arrest Plaintiff.

14. Notwithstanding, Defendant Police Officers arrested and handcuffed

Plaintiff.

15. Prior to being handcuffed, Plaintiff attempted to inform Defendant Police Officers that he had committed no crime and that he did not want be handcuffed and go to jail, but Plaintiff went peacefully and submitted without resistance to the false arrest.

16. Upon arrival at the jail, Plaintiff was subjected to a humiliating search and was deprived of all money and personal belongings.

17. Plaintiff was then incarcerated in a cell with criminals.

18. Eventually, Plaintiff was released from jail and custody after about many hours in custody.

19. After being released from jail, a criminal proceeding was brought against Plaintiff titled People of the State of New York v. Nygel Joseph in the Criminal Court of the City of New York, Bronx County, under docket # 2016BX024372.

20. As a result of this criminal complaint, Plaintiff had to appear publicly as a criminal defendant in court several times.

21. Because the charges in the criminal proceeding had no merit, on December 6, 2016, all charges against Plaintiff (who was a criminal defendant at the time) were dismissed before the case ever went to trial.

FIRST CAUSE OF ACTION

(Violation of 42 U.S.C § 1983)

22. Plaintiff repeats and re-alleges every allegation in this complaint.

23. Defendant Police Officers intended to confine and completely confined Plaintiff.

24. Plaintiff was cognizant of the confinement.

25. Plaintiff voiced objections to the confinement in which he did not consent.

26. Defendant Police Officers were not justified, privileged, or provoked into confining Plaintiff in any way.

27. Defendant Police Officers acted under color of law as is defined in 42 U.S.C. § 1983 in confining and incarcerating Plaintiff and in violating Plaintiff's rights and discriminating against him and profiling him because of his race.

28. Defendant Police Officers violated Plaintiff's civil liberties and rights under the United State Constitution, including, but not limited to, the Bill of Rights, and rights under the New York State Constitution.

29. Pursuant to 42 U.S.C. § 1983, Plaintiff is entitled to damages from Defendant Police Officers for violations of Plaintiff's constitutionally protected civil rights.

30. Defendant CITY has maintained a system of review of police conduct that is so untimely and cursory as to be ineffective and has a policy to permit and tolerate the unreasonable and excessive use of force and lack of discretion in making arrests by police officers.

31. The acts, omissions, systemic flaws, policies, and customs of Defendant CITY caused Defendant Police Officers to believe that the excessive and unreasonable use of force and falsely arresting individuals, such as Plaintiff based upon, among other things, racial motives, would not be aggressively, honestly, and properly investigated, with the foreseeable result that officers are more likely to use excessive or unreasonable force and against Plaintiff and in falsely arresting Plaintiff and others in the future.

32. Consequently, pursuant to 42 U.S.C. § 1983, Plaintiff is also entitled to damages from Defendant CITY for violations of Plaintiff's constitutionally protected civil rights against.

33. Finally, all Defendants are liable for paying Plaintiff an award of counsel fees in an amount to be determined by this court pursuant to 42 U.S.C. § 1988.

SECOND CAUSE OF ACTION

(False arrest/imprisonment)

34. Plaintiff repeats and re-alleges every allegation in this complaint.

35. Defendant Police Officers intended to confine and completely confined Plaintiff.

36. Plaintiff was cognizant of the confinement.

37. Plaintiff voiced strenuous objections to the confinement in which he did not consent.

38. Defendant Police Officers were not justified, privileged, or provoked into confining Plaintiff.

39. Defendant Police Officers acted within the scope of their duties as police officers for the CITY and in the interest of the CITY when they confined and falsely arrested and imprisoned Plaintiff.

40. Defendant CITY is, therefore, vicariously liable for falsely arresting and imprisoning Plaintiff.

41. Thus, all Defendants are liable for falsely arresting and imprisoning Plaintiff.

THIRD CAUSE OF ACTION**(Battery)**

42. Plaintiff repeats and re-alleges every allegation in this complaint.
43. Defendant Police Officers' acts were intentional.
44. Defendant Police Officers' conduct resulted in harmful, offensive, and nonconsensual bodily contact with the Plaintiff amounting to the civil tort of battery.
45. Defendant Police Officers acted within the scope of their duties as police officers for the CITY and in the interest of the CITY when they battered Plaintiff.
46. Defendant CITY, therefore, is vicariously liable for the battery that Defendant police officers inflicted upon Plaintiff.
47. Thus, all Defendants are liable for the tort of battery.

FOURTH CAUSE OF ACTION**(Negligence)**

48. Plaintiff repeats and re-alleges every allegation in this complaint.
49. Defendant Police Officers had a duty to protect and not arrest citizens who commit no crime.
50. Defendant Police Officers breached that duty by failing to exercise reasonable care and judgment in determining whether to arrest Plaintiff.
51. The actions of Defendant Police Officers caused Plaintiff to suffer damages.
52. Consequently, Defendant Police Officers are liable for negligence.
53. Defendant Police Officers acted within the scope of their duties as police

officers for Defendant CITY and in the interest of the CITY when they arrested Plaintiff.

54. Defendant CITY, therefore, is vicariously liable for the actions of Defendant Police Officers, who acted within their scope of employment as police officers.

55. Thus, all Defendants are liable for negligence.

FIFTH CAUSE OF ACTION

(Negligent Hiring and Retention)

56. Plaintiff repeats and re-alleges every allegation in this complaint.

57. Defendant CITY had a duty to hire and retain competent police officers.

58. Defendant CITY knew, or should have known, that Defendant Police Officers were unfit to be hired and retained as police officers of the New York City Police Department.

59. Defendant CITY breached its duty to hire and retain competent police officers.

60. As a result of the CITY's breach, the Plaintiff suffered damages.

61. Thus, Defendant CITY is liable for negligent hiring and retention of Defendant police officers.

SIXTH CAUSE OF ACTION

(Malicious Prosecution)

62. Plaintiff repeats and re-alleges every allegation in this complaint.

63. Defendants brought a prior criminal proceeding against Plaintiff.

64. The prior criminal proceedings terminated in favor of Plaintiff (where Plaintiff was named a criminal defendant).

65. Defendant Police Officers lacked probable cause to handcuff, arrest, imprison, and prosecute Plaintiff.

66. Defendant Police Officers had malice in prosecuting Plaintiff in the prior criminal proceedings.

67. Defendant CITY is vicariously liable for the actions of Defendant Police Officers, who acted within their scope of employment as New York City Police Department officers.

68. Thus, all Defendants are liable for malicious prosecution.

WHEREFORE, Plaintiff demands judgment as follows:

- (a) on the First Cause of Action (42 U.S.C § 1983), actual and punitive damages in the amount of \$2 million and, pursuant to 42 U.S.C. § 1988, attorney's fees against all Defendants;
- (b) on the Second Cause of Action (False arrest/imprisonment), actual and punitive damages in the amount of \$2 million against all Defendants;
- (c) on the Third Cause of Action (Battery), actual and punitive damages in the amount of \$2 million against all Defendants;
- (d) on the Fourth Cause of Action (Negligence), actual damages in the amount of \$2 million against all Defendants;
- (e) on the Fifth Cause of Action (Negligent Hiring and Retention), actual damages in the amount of \$2 million against Defendant CITY;
- (f) on the Sixth Cause of Action (malicious prosecution), actual and punitive

damages in the amount of \$2 million; and

(g) costs, disbursements, interest, and such other relief that is appropriate.

Dated: Great Neck, New York
June 1, 2017

Yours, etc.,

PETER M. AGULNICK, P.C.

By: 

Peter M. Agulnick

Attorneys for Plaintiff

NYGEL JOSEPH

8 Bond Street, Suite 303

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Defendants.

SUMMONS and COMPLAINT

PETER M. AGULNICK, P.C.

Attorney for Defendant NYGEL JOSEPH

**8 BOND STREET, SUITE 303
GREAT NECK, NEW YORK 11021-2426
TEL (212) 571-2266
FAX (212) 656-1645**

This office does not accept service of litigation papers by electronic means except for cases that have been designated "E-file" cases and, in those instance, this office still does not consent to fax service.

Pursuant to 22 NYCRR § 130-1.1, the undersigned, an attorney admitted to practice in the courts of New York State, certifies that, upon information and belief and reasonable inquiry, the contentions contained in the annexed document(s) are not frivolous.

Dated: June 1, 2017

Signature: _____



Name: Peter M. Agulnick
